
Appeal Decision

Site visit made on 7 August 2026

by **F Leung BSc(Hons) MSc MRTPI**

an Inspector appointed by the Secretary of State

Decision date: 7th September 2026

Appeal Ref: 6009647

23 Manchester Street, Luton LU1 2QB

- The appeal is made under section 78 of the Town and Country Planning Act 1990 (as amended) against a refusal to grant planning permission.
 - The appeal is made by Mr A Shaffi of Shaffi and Sons against the decision of Luton Borough Council.
 - The application Ref is 26/00073/FUL.
 - The development proposed is change of use of ground floor shop Class E to Sui Generis takeaway together with replacement shop front from aluminium to painted timber.
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Decision

1. The appeal is dismissed.

Preliminary Matters

2. Notwithstanding the description of development set out above, which is taken from the application form, it is clear from the plans and accompanying details that the development also comprises a flue/extract duct on the rear elevation. The Council dealt with the proposal on this basis and so shall I.
3. Prior to the determination of this appeal, a revised version of the National Planning Policy Framework (the Framework) was published on 17 August 2026. The changes made to the Framework, insofar as they relate to the substantive matters in this appeal, do not fundamentally alter the relevant policy position. I am therefore satisfied that no party would be prejudiced by my consideration of the revised version of the Framework in reaching my decision. References hereafter are to the revised version of the Framework.

Main Issues

4. The main issues are the effect of the proposal on:
 - the vitality and viability of the Luton Town Centre Shopping Area; and
 - the health and wellbeing of residents in the surrounding area.

Reasons

Vitality and viability of the town centre

5. The appeal site is a ground-floor commercial unit located along a secondary shopping frontage within the Luton Town Centre Shopping Area, as defined on the Policies Map of the Luton Local Plan 2011-2031 (2017) (the LP). It is currently vacant. The appellant indicates that it was previously in use as a grocery store.

6. Policy LLP22 of the LP indicates that, within the Luton Town Centre Shopping Area, planning permission will be granted for the development of non-A1 town centre uses in secondary shopping frontages, provided that the proposed use would not result in more than 50% of the identified frontage being in non-A1 use.
7. Since the adoption of the LP in 2017, the Town and Country Planning (Use Classes) Order 1987 has been amended. With effect from 1 September 2020, shops, formerly within Class A1, now generally fall within Class E, whereas hot food takeaways, formerly within Class A5, are now sui generis uses.
8. The proposal seeks the change of use of the existing vacant retail unit to a takeaway. At the time of my site visit, I counted nine commercial units along this section of Manchester Street (Nos 9 to 27), including the appeal premises and another vacant unit. Of these units, five were non-retail food outlets. The proposal would increase the number of non-retail units to six out of nine units. This would represent two-thirds of the identified frontage and would significantly exceed the 50% threshold set out in Policy LLP22. The appeal proposal would therefore further erode the proportion of retail uses within the identified shopping frontage.
9. The appellant states that there have been difficulties in re-letting the premises as a Class E unit since the former grocery store vacated the site. However, there is no substantive evidence before me to demonstrate that the unit is no longer viable for Class E use, or that sufficient marketing has been undertaken.
10. The appeal site does not fall within the Creative Quarter identified under Policy LLP11 of the LP. However, it fronts St George's Square, which lies immediately south of the Creative Quarter. St George's Square functions as a meeting place and as a venue for events and festivals, while also forming part of the wider town centre shopping area. The surrounding shopping malls also include entertainment uses, including a cinema.
11. St George's Square is identified in the Luton Town Centre Delivery Plan 2025-2030 (the Delivery Plan) as Luton's cultural and social hub, with proposals for its redesign, including opportunities for businesses to extend café tables into the space. While I recognise these proposals for the square, the frontages surrounding the square already include a number of food outlets and the appeal site lies within a shopping frontage defined by the LP. The development plans for St George's Square do not contradict the LP requirement to maintain an appropriate proportion of retail uses along designated shopping frontages. I am therefore not satisfied that refusing planning permission for the replacement of a retail shop with a takeaway would be contrary to the Council's development plans for the square.
12. The appellant also states that many retail shops within the shopping centre do not open late and that the proposal would contribute to the Council's ambition to increase economic activity during the evening and night-time, in accordance with the Delivery Plan. I acknowledge that the proposal, with its longer evening opening hours, would make some contribution to the night-time economy. However, night-time operation is not unique to takeaways, as other retail uses, including convenience stores, can also operate into the evening. The proposed late-night opening hours therefore would not justify the loss of a retail unit along a designated shopping frontage.

13. I acknowledge that the proposed takeaway would provide an additional dining option in the town centre, complementing cultural events and entertainment activities at and around St George's Square. It would also offer an option for those who do not wish to dine in but may wish to use the seating areas around the square. Furthermore, it could provide a food option for guests at the nearby hotel, which the appellant indicates has no dining facilities of its own, thereby offering some support for the Council's objective of increasing overnight stays in the town. However, there is already a high concentration of food establishments offering varied cuisines in the area, including those adjacent to the appeal premises which already provide takeaway services into the late evening. Consequently, the contribution of the proposal to the range of dining options in the area would be relatively limited.
14. For the reasons given above, the proposal would result in an over-concentration of non-retail uses along a designated shopping frontage, contrary to the relevant provisions of Policy LLP22 of the LP. Consequently, it has not been sufficiently demonstrated that the proposal would not adversely affect the vitality and viability of the Luton Town Centre Shopping Area. It would also conflict with the broader aims of Policy LLP21, insofar as that policy seeks to direct main town centre uses to locations and scales appropriate to the centre hierarchy. Furthermore, the proposal would undermine the aims of Policy LLP3, which, amongst other matters, seeks to ensure that Luton Town Centre provides a balanced offer of high-quality uses, including independent and national retail, alongside other town centre uses.
15. Policy LLP23 is referred to in the Council's case officer report, but not in the reasons for refusal. In any event, that policy relates to District and Neighbourhood Areas and Shopping Parades, whereas the appeal site lies within the Luton Town Centre Shopping Area. Accordingly, Policy LLP23 has not been determinative in my assessment.

Health and wellbeing of residents

16. Policy HC5 of the Framework states that development proposals for hot food takeaways should be refused within reasonable walking distance¹ of schools and other places where children and young people congregate, unless the location is within a designated town centre. It also states that such proposals should be refused in locations where there is evidence that a concentration of such uses is having an adverse impact on local health, pollution or anti-social behaviour.
17. The appeal site is opposite Luton Central Library, across St George's Square. However, it is not within reasonable walking distance of Dallow Primary School. The appeal site is also within a designated town centre. I acknowledge that children and young people may reasonably be expected to congregate at and around St George's Square. Nevertheless, the town centre location is a relevant exception under Policy HC5 of the Framework. Moreover, food establishments around St George's Square and within the wider town centre provide a broad range of food choices.

¹ Annex B of the Framework defines 'reasonable walking distance': "for the purpose of policy HC5 (hot food takeaways) it should be considered to be around 400m, or around five minutes' walk time if topography, route availability and quality or physical barriers would prevent or discourage walking up to 400m".

18. At the time of my visit, excluding a food truck offering takeaway Thai food, all food outlets along Manchester Street had some seating facilities for on-site consumption. While some of them appeared to sell fried chicken or burgers as a main offering, at least two of them provided other food choices, including salad and sushi. Irrespective of whether some of these food outlets could be regarded as hot food takeaways or as offering less healthy food choices, the evidence before me, including the public health documents and strategies referred to by the Council, does not adequately demonstrate that this particular location at Manchester Street has such a concentration of hot food takeaways that it is causing an adverse impact on local health.
19. Furthermore, there is limited planning control over the precise food choices that may be provided within a food establishment, whether for on-site consumption or takeaway only. There is also no substantive evidence before me to demonstrate that, by reason of being a takeaway, the proposal would inherently provide less healthy food choices than a food establishment with seating facilities for mostly on-site consumption. Overall, given the availability of a variety of food choices within the town centre, I am not persuaded that an additional takeaway at the appeal premises would materially prejudice the ability of residents, including children and young people, to make healthy food choices.
20. I therefore conclude that the proposal would not materially harm the health and wellbeing of residents in the surrounding area. Accordingly, it would not conflict with Policies LLP1 and LLP25 of the LP insofar as they seek, amongst other things, to support and to promote healthy communities.
21. The proposal would also accord with Policy HC5 of the Framework, having regard to the appropriateness of its designated town centre location and the absence of sufficient evidence that a concentration of such uses is having an adverse impact on local health, pollution or anti-social behaviour. In this respect, it would not undermine the Framework's objective of promoting healthy and inclusive places.
22. Although it does not form part of the Development Plan, the Luton 2040 Vision seeks to make Luton a healthy, fair and sustainable town and identifies population wellbeing as one of its five priorities. For the reasons detailed above, it is unlikely that the proposal would materially detract from the achievement of that priority.

Other Matters

23. The appeal site is located within the Town Centre Conservation Area (the CA). Heritage matters do not form part of the Council's reason for refusing the proposed development. Nonetheless, section 72(1) of the Planning (Listed Buildings and Conservation Areas) Act 1990 (the Act) requires special attention to be paid to the desirability of preserving or enhancing the character or appearance of the CA.
24. The CA is concentrated on the town centre and includes George Street, a main shopping street, together with several streets extending from it. The dominant Town Hall and the adjoining war memorial are key features. The appeal site forms part of a row of two- and three-storey buildings facing St George's Square, with commercial uses at street level. These buildings reflect a mix of designs and ages, with modern shopfronts of varied design and style. Based on my observations, the significance of the CA, insofar as it relates to the proposal, derives in part from the varied design and scale of the built form in this commercial shopping street location.

25. The only external alterations proposed would be the external flue at the rear of the building, which would be screened from public views, and the alteration of the aluminium shopfront to a painted timber shopfront. Bearing in mind the extent, nature and location of the proposed development, the proposal would have a neutral effect on, and would therefore preserve, the character and appearance of the CA as a whole.
26. I am also aware that the site is close to the Grade II listed buildings of Luton Town Hall and the War Memorial. Mindful of the statutory duty set out in section 66(1) of the Act, I have had special regard to the desirability of preserving their settings. Their special interest and significance derive, in part, from their historic and architectural interest, as appreciated principally from Town Hall Square. Notwithstanding the proximity of the appeal site to the listed buildings and the degree of intervisibility between them, given the nature and scale of the proposed development, the proposal would preserve their settings and would not harm their significance.
27. The Council has raised no objection with respect to the CA or the setting of the listed buildings. Nevertheless, the absence of harm in these respects does not weigh for or against the proposal and does not alter my conclusion on the main issues.
28. The appellant contends that the proposed shopfront alterations would improve the street scene, the CA and the setting of the historic Luton Town Hall. Having regard to the nature and scale of the proposal, any benefits associated with the shopfront alterations would be limited. They would not outweigh the harm I have identified to the vitality and viability of the town centre shopping area.

Conclusion

29. For the reasons given above, I conclude that the appeal proposal would conflict with the development plan as a whole, and there are no material considerations that indicate the proposed development should be determined other than in accordance with it. Therefore, the appeal should be dismissed.

F Leung

INSPECTOR